

LW6118E: SPORTS AND ENTERTAINMENT LAW

Effective Term

Semester B 2025/26

Part I Course Overview

Course Title

Sports and Entertainment Law

Subject Code

LW - Law

Course Number

6118E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Additional Information

Nil

Part II Course Details

Abstract

This course offers a comprehensive examination of the legal, regulatory, and business aspects of the sports, entertainment, and media industries in Hong Kong and beyond. Designed by two leading specialists, with over 30 years of industry experience each, the curriculum integrates theoretical foundations with practical applications relevant to today's dynamic market and enables students to assess the practical and legal implications of social media and artificial intelligence within these industries.

The course covers key issues such as:

- Copyrights and performers' rights specific to sports and entertainment
- Infringement and exceptions; anti-piracy by legal and technical measures
- Exploitations of film, music, and sports rights
- Legal challenges arising from generative AI in entertainment production
- Legal pitfalls in film and TV production and promotion
- Regulatory frameworks for sports betting
- Protection of programme ideas, film franchises and formats
- Protection of personality rights - defamation, malicious falsehood, passing off, character merchandising, privacy and deepfake
- Legal issues pertaining to disputes between artistes and their management companies or record companies

Students will develop essential knowledge and skills to understand the underlying legal concepts, learn from case laws and lecturers' practical experience to grow and support their career development within the sports and entertainment sectors.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Describe and explain basic legal rules, issues and practices in sports and entertainment industries	50	x	x	x
2	Solve legal issues in sports and entertainment industries by: · considering, interpreting and applying relevant statutory provisions · considering and applying relevant cases · reading, interpreting and adapting relevant forms and precedents · developing strong legal argumentation · communicating orally and in writing	50	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	Introduction and discussions of main legal concepts, issues and cases in sports and entertainment industry.	1, 2	
2	Class Exercises	In-class problem solving exercises to strengthen students' comprehension of the legal concepts presented.	1, 2	

Additional Information for LTAs

3 hours/week

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Class Participation and Assessment: - Understanding of basic legal rules, issues and practices - Application of legal rules - Critical evaluation of legal rules, cases, contracts and practices	1, 2	30	-	No

Continuous Assessment (%)

30

Examination (%)

70

Examination Duration (Hours)

3

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Exam:

- Understanding of basic legal rules and principles
- Application of legal rules to resolve problems
- The use of Generative AI tools is not allowed.

Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in the final examination and an overall mark of 40% in order to pass the course.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in the final examination and an overall mark of 50% in order to pass the course.

Assessment Rubrics (AR)

Assessment Task

Class Participation and Assessment (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Depth of understanding, strong argumentation, active participation in discussions, ability to work with peers.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Depth of understanding, ability to apply rules, strong argumentation and depth of analysis.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Class Participation and Assessment (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Depth of understanding, strong argumentation, active participation in discussions, ability to work with peers.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Depth of understanding, ability to apply rules, strong argumentation and depth of analysis.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

The following topics are studied in detail:

- a. Definition of copyright, what works are protected by copyright, requirements for protection, authorship, ownership, duration, and restricted acts, distinction between ideas and expression, copyrightability of AI-generated works
- b. Moral and performer's rights: purposes and scope of protection

- c. Key methods of copyright exploitation, including assignment, licensing, and testamentary disposition. Types of copyright assignments and licenses, including partial assignments and exclusive licenses. Roles of collecting societies in music industry, rights clearance procedures, and practical case studies on licensing and rights management for music, film, television, publishing, and stage productions
- d. Types of copyright infringement: primary and secondary, acts constituting infringement and “substantial part” tests, legitimacy of using copyrighted materials for AI training, legal remedies for infringement, site-blocking and technical measures to address piracy, technological protection measures and circumvention, statutory exceptions to infringement
- e. Commercialization of sports events and characteristics of top-tier sports broadcasting licenses
- f. Legal pitfalls in film and TV production: Explore lesser-known legal issues in film and TV production beyond the main topics with interactive class exercises. These activities help students develop skills in spotting legal issues, conducting legal research, and finding practical solutions.
- g. Copyright – Idea/Expression Dichotomy: how and where to draw the line between ideas and expressions of an idea and can the formats of television programmes or film franchises be protected
- h. Can ideas for entertainment projects be protected by confidentiality? And how breach of confidence evolves to protect private information
 - i. What happens when right to respect for private life conflicts with freedom of expression
 - j. Protection of name and reputation via defamation and malicious falsehood
- k. The fundamentals of passing off and character merchandising and how these may protect “personality rights” against unauthorised commercialisation
 - l. Analysis of how deepfakes which exploit celebrity’s likeness, voice and other distinctive attributes may be tackled
- m. Learn from real life examples, legal and practical considerations pertaining to endorsement, advertising and promotion by artistes and key opinion leaders
- n. Common legal issues pertaining to disputes between artistes and their managers or record companies
- o. Essence of sports betting in Hong Kong

Reading List

Compulsory Readings

Title	
1	Nicholas Caddick, Gwilym Harbottle, Uma Suthersanen (2024) Copinger and Skone James on Copyright (19th ed) Sweet & Maxwell
2	Kenny Wong and Alice Lee, Intellectual Property Law and Practice in Hong Kong (2nd ed), Sweet & Maxwell
3	Doreen Weisenhaus, Hong Kong Media Law – A Guide for Journalists and Media Professionals (expanded 2nd ed), Hong Kong University Press

Additional Readings

Title	
1	Tort Law and Practice in Hong Kong (4th ed), Sweet & Maxwell – Chapter 18, Defamation; Chapter 19 – Malicious Falsehood; Chapter 20 – Breach of Confidence; Chapter 21 – Privacy; Chapter 25 – Statutory Intellectual Property Rights; Chapter 26 – Passing Off
2	Copyright and Artificial Intelligence – Public Consultation Paper – Intellectual Property Department, July 2024
3	Enhancement of the Copyright Ordinance regarding Protection for Artificial Intelligence Technology Development – Outcomes of Public Consultation and Proposed Way Forward, Intellectual Property Department, February 2025
4	David Tan, The Commercial Appropriation of Fame: A Cultural Analysis of the Right of Publicity and Passing Off, 2017, Cambridge University Press
5	Jyh-An Lee, Reto Hilty and Kung-Chung Liu, Artificial Intelligence and Copyright Law, Part III, 2021, Oxford University Press